

PAYMENT AND TERM

1. Billing date

Payment is due on the same calendar date each month. The applicable monthly price should be stated in the signed agreement, order form, or service selection for that client. If a month does not contain the normal billing date, payment is due on the final day of that month.

Agreement detail: State the billing date, accepted payment method, any grace period, and any lawful late charge in the signed agreement.

2. Month-to-month service

Hosting renews automatically for one month at a time. There is no fixed long-term commitment unless both sides later agree to one in writing.

Agreement detail: The client remains responsible for charges that become due before cancellation takes effect.

3. 30-day cancellation notice

Either the client or the provider may end hosting by giving at least 30 days' written notice. Notice should be sent by the email address or other delivery method listed in the agreement.

Agreement detail: Identify when notice is considered received and the final service date.

4. No partial-month refunds

Amounts already paid for a billing month are not prorated or refunded merely because the client stops using the website or cancels during that month, except where the agreement or applicable law requires otherwise.

Agreement detail: This does not excuse the provider from giving any refund specifically promised elsewhere in the agreement.

5. Late payment and suspension

If payment is not received when required, the provider may suspend public access to the website and related hosting services after any notice or grace period stated in the agreement. Suspension does not erase unpaid charges.

Agreement detail: State the grace period, notice method, reactivation conditions, and any lawful reactivation fee. Do not disable or retain a domain that the client owns merely as leverage.

SERVICES AND COSTS

6. Included services

The hosting service includes website hosting, an SSL certificate while supported and properly configured, the backup process described in the agreement, and basic support. Basic support means assistance with hosting availability and ordinary hosting-related problems.

Agreement detail: List the backup frequency, retention period, support channel, and expected support hours. Do not promise uninterrupted service unless you truly provide a defined service-level guarantee.

7. Redesigns and major updates

A redesign, new page, new feature, large content change, migration, custom coding, or significant repair is outside basic hosting support and may require a separate quote and written approval.

Agreement detail: Define what small edits, if any, are included so ordinary maintenance does not become a dispute.

8. Domain and third-party charges

Domain registration or renewal, paid plugins, stock media, email service, database usage, payment processing, and other third-party charges are separate unless the signed agreement expressly says they are included.

Agreement detail: Identify who owns each account, who receives renewal notices, and who is responsible for payment.

CONTENT, OWNERSHIP, AND RIGHTS

9. Client ownership of business content

The client keeps ownership of the original business content it owns and supplies, such as its text, photographs, logos, videos, and customer materials. Hosting the content does not transfer that ownership to the provider.

Agreement detail: Ownership of the website design, custom code, reusable tools, templates, and licensed materials should be addressed separately in the main agreement.

10. Responsibility for supplied content

The client is responsible for the accuracy, legality, safety, and appropriateness of all photos, text, logos, videos, reviews, claims, files, and instructions it supplies or asks the provider to publish.

Agreement detail: The provider is not required to independently investigate every client-supplied item.

11. Permission to use supplied content

The client confirms that it owns or has sufficient licenses, releases, and permissions to copy, display, edit, and publish everything it supplies. This includes copyright permission and, when applicable, permission from recognizable people appearing in photos or videos.

Agreement detail: The provider may request proof of permission before publishing or continuing to host disputed material.

12. Claims caused by client content

If client-supplied content or instructions cause a copyright, trademark, privacy, publicity, defamation, advertising, or similar third-party claim, the client must protect and reimburse the provider to the extent stated in the agreement and allowed by law.

Agreement detail: An attorney should draft the indemnification procedure, including notice, control of the defense, cooperation, settlements, and which costs are covered.

13. Removal of disputed or illegal content

The provider may remove, restrict, or disable material reasonably believed to be illegal, harmful, infringing, fraudulent, or subject to a credible rights complaint. The provider may act promptly when delay could increase harm or liability.

Agreement detail: The provider should notify the client when reasonably possible and preserve relevant records when legally appropriate.

SECURITY AND RESPONSIBILITY

14. Password and account security

The client must use strong, unique passwords, protect login credentials, limit access to authorized people, enable multi-factor authentication when available, and quickly report suspected unauthorized access.

Agreement detail: The client is responsible for actions taken through credentials it failed to protect, except to the extent the provider caused the compromise.

15. Reasonable security; no hack-proof promise

The provider will use reasonable security measures appropriate to the hosting service, such as SSL configuration, access controls, updates within the provider's responsibility, and secure handling of credentials. No website or internet service can be guaranteed completely secure or continuously available.

Agreement detail: Avoid claiming the service is '100% secure' or 'hack-proof.' Describe the actual safeguards and divide security duties between the provider, client, and third-party host.

16. Backup limitations

The provider will perform or maintain only the backups described in the agreement. Backups reduce risk but may be incomplete, corrupted, unavailable, or unable to restore the newest changes. They do not replace the client's own copy of important content and records.

Agreement detail: State frequency, retention, testing, restoration time, restoration cost, and whether databases, uploads, email, and configuration files are included.

17. Third-party outages

The provider is not responsible for downtime, data loss, delays, policy changes, or service failures caused by domain registrars, data centers, cloud hosts, internet carriers, plugins, APIs, payment processors, email providers, or other third parties outside the provider's reasonable control.

Agreement detail: The provider should still use reasonable efforts to communicate and assist when an outside service fails.

18. Changes made by others

The provider is not responsible for defects, downtime, security issues, data loss, or additional work caused by changes made by the client, its employees, another developer, or any unauthorized person.

Agreement detail: Repair work may be separately billed after the client approves the scope and price.

19. Client privacy and legal compliance

The client is responsible for the legality of its business, advertising claims, forms, cookies, analytics, email or text marketing, privacy notices, accessibility obligations, and collection and use of visitor or customer information. The provider does not give legal advice merely by hosting the website.

Agreement detail: The agreement should separately state which party controls collected data and which party handles privacy requests, record retention, consent, and legally required notices.

LIABILITY AND ENDING SERVICE

20. Limitation of liability

To the extent allowed by law, the agreement should exclude indirect, special, incidental, punitive, and consequential damages, including lost profits or lost business, and should place a clear monetary cap on the provider's total liability.

Agreement detail: The actual cap must be written into the signed agreement. An attorney should select the amount, permitted exceptions, and wording; some liabilities may not legally be limited.

21. Files after cancellation

After hosting ends, website files and available data will be retained only for the period stated in the agreement. During that period, the client may request an available export after paying all undisputed amounts and any stated export or migration fee. After the period expires, the provider may permanently delete remaining copies, subject to legal retention duties.

Agreement detail: Insert a specific retention period and describe the export format. Clarify that third-party proprietary systems, licensed items, credentials, and provider-owned tools may not be transferable.

22. Nevada law

The agreement is governed by Nevada law, without automatically deciding every conflict-of-laws question. The agreement should identify the Nevada county where permitted legal proceedings will occur and describe any required negotiation, mediation, arbitration, or court process.

Agreement detail: Have Nevada counsel confirm venue, dispute-resolution, consumer, and small-claims language.

23. Electronic signatures

The parties agree that electronic signatures, electronic acceptance, and electronically delivered copies may be treated as originals to the extent allowed by law. Each signer confirms authority to bind the party named in the agreement.

Agreement detail: Keep a reliable record of the accepted version, signer, date, time, and method of acceptance.